

FEDERAL MARITIME COMMISSION

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HANGZHOU QIANWANG DRESS CO., LTD. Docket No. 17-02

Complainant,

**FIRST REQUEST FOR
PRODUCTION
OF DOCUMENTS**

-against-

RDD FREIGHT INTERNATIONAL INC.

Respondent.

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PLEASE TAKE NOTICE, that pursuant to Rules 26 and 34 of the Federal Rules of Civil Procedure as well as the FMC Rules of Evidence, Respondent RDD FREIGHT INTERNATIONAL INC. ("RRD") requests that Complainant produce the following documents for inspection and copying at the offices of Defendant's attorneys, , on or before November 28, 2017. This request is to be deemed continuing up to and including the time of trial, and RDD shall be permitted to inspect and copy any documents not presently available which may become available.

DEFINITIONS AND INSTRUCTIONS

Notwithstanding any definition below, each word, term, or phrase used in these document requests is intended to have the broadest meaning permitted under the Federal Rules of Civil Procedure.

1. *Concerning:* The term "concerning" means relating to, referring to, describing, evidencing, or constituting.
2. *Communication:* The term "communication" means the transmittal of information by any means.

3. *Document:* The terms "document" and "documents" are defined to be synonymous in meaning and equal in scope to the usage of the term "documents" in Fed. R. Civ. P. 34(a) and include(s) the term "writing". Unless the producing party demonstrates undue burden or other grounds sufficient to meet the requirements of Fed. R. Civ. P. 26(c), electronic mail is included within the definition of the term "document". The terms "writings", "recordings", and "photographs" are defined to be synonymous in meaning and equal in scope to the usage of those terms in Fed. R. Evid. 1001. A draft or non-identical copy is a separate document within the meaning of the term "document".

4. *Identify (with respect to persons):* When referring to a person, to "identify" means to state the person's full name, present or last known address, and, when referring to a natural person, additionally, the present or last known place of employment. If the answering party knows the business and home telephone numbers, and if the person is not a party or present employee of a party, said telephone numbers shall be provided. Once a person has been identified in accordance with this subparagraph, only the name of the person need be listed in response to subsequent discovery requesting the identification of that person.

5. *Identify (with respect to documents):* When referring to documents, to "identify" means to state the: (i) type of document; (ii) general subject matter; (iii) date of the document; and, (iv) author(s), addressee(s), and recipient(s) or, alternatively, to produce the document.

6. *Occurrence/Transaction:* The terms "occurrence" and "transaction" mean the events described in the Complaint and other pleadings, as the word "pleadings" is defined in Fed. R. Civ. P. 7(a).

7. *Parties:* The terms "Complainant" and "Respondent," as well as a party's full or abbreviated name or a pronoun referring to a party, mean that party and, where applicable,

its officers, directors, and employees. This definition is not intended to impose a discovery obligation on any person who is not a party to the litigation or to limit the Court's jurisdiction to enter any appropriate order.

8. *Person*: The term "person" is defined as any natural person or any business, legal or governmental entity or association.

9. *You/Your*: The terms "you" or "your" include the person(s) to whom these requests are addressed, and all of that person's agents, representatives, and attorneys.

10. The present tense includes the past and future tenses. The singular includes the plural, and the plural includes the singular. "All" means "any and all," "any" means "any and all." "Including" means "including but not limited to," "and" and "or" encompass both "and" and "or." Words in the masculine, feminine, or neuter form shall include each of the other genders.

11. In addition to the definitions Rule 34 of the Federal Rules of Civil Procedure, documents covered by this request include any documents subject to Plaintiff's direction and control and/or that of Plaintiff's counsel wherever located or moved, including all translations of documents in a language other than English and materials concerning each and every such translation.

12. "Cargo" means the shipments that are the subject of this dispute.

13. " Complainant " means HANGZHOU QIANWANG DRESS CO., LTD., the shippers, the consignees, and/or the owners of the Cargo.

14. In the event that any document within the scope of this request is withheld from production upon a claim of privilege, you are requested to serve upon Defendant on the date fixed for inspection and copying of the documents requested herein a written identification of each document withheld from production, setting forth as to each such document:

- i. the nature of the privilege claimed;

- ii. the date of the document;
- iii. the type of document (i.e., whether it is a letter, memorandum, facsimile, etc.);
- iv. the subject matter of the document;
- v. the name and last known business address of each person who made, prepared or signed the document;
- vi. the name and last known business address of each person to whom the document was addressed and each person to whom a copy was sent;
- vii. the name and last known business address of any person who at any time had custody, possession or control of the original or a copy of the document, and the name of, address of, and his or her position with the business entity by which he or she was then employed; and
- viii. the present location of the document.

DOCUMENT REQUESTS

1. All documents created or originated at the loading port regarding the Cargo carried under bills of lading Nos. NBE16081082 dated Aug. 25, 2016; NBE16081407 dated Aug. 31, 2016 and NBE16091121 dated Sept. 16, 2016.

2. To the extent not encompassed in other requests herein, all correspondence with the shippers, the consignees, and/or the owners of the Cargo regarding the Cargo carried under the aforesaid bills of lading.

3. To the extent not encompassed in other requests herein, all of the underlying sales contracts with the Complainant and/or the ultimate consignees for the Cargo shipped pursuant to the aforesaid bills of lading.

4. To the extent not encompassed in other requests herein, all documents that concern or relate to the Cargo carried under the aforesaid bills of lading, including, but not limited to, the ultimate disposition of the cargo.

5. To the extent not encompassed in other requests herein, all documents that concern or relate to all investigations or inspections made on or on behalf of consignee or you of the alleged failure to receive payments for the Cargo shipped under the aforesaid bills of lading.

6. To the extent not encompassed in other requests herein, all documents that concern any attempts to obtain payment, the ultimate disposition and/or destruction of the Cargo referenced in the above requests.

7. To the extent not encompassed in other requests herein, all documents that support the damages pertaining to the Cargo referenced in the above requests claimed by Complainant in the Complaint.

Dated: New York, New York
Oct. 24, 2017

By: 

REN RONG PAN ATTORNEY AT LAW

Attorneys for Respondent
11 East Broadway, Suite 4B
New York, NY 10038
(212) 406-5533

CERTIFICATE OF SERVICE

I hereby certify, pursuant to Title 28 U.S.C. §1746 and FMC Rules, that on October 25, 2017,

I served a true and correct copy of the following document:

- 1) First Request for Production of Documents
- 2) First Set Interrogatories

by mailing it in a sealed envelope, with postage prepaid thereon, in an official depository of the U.S. Postal Service within the State of New York, to be delivered by First Class Mail to:

HANGZHOU QIANWANG DRESS CO., LTD., c/o Lan Ye, 36-38 Main Street, Flushing, NY 11355

and by e-mailing it to HANGZHOU QIANWANG DRESS CO., LTD. at echohats@aliyun.com

I declare under penalty of perjury that the foregoing is true and correct.

Dated: New York, New York
October 25, 2017


REN RONG PAN ATTORNEY AT LAW